

FD&C ACT (2)

8. FD&C Act Poisonous or Deleterious Container Components

Title: Harmful Substances in Drug Containers

Jurisdiction: United States

Category: Standards

Source Citation: Federal Food, Drug, and Cosmetic Act, §501(a)(3); 21 U.S.C. §351(a)(3)

Plain English Summary:

A drug may be adulterated if its container contains a poisonous or deleterious substance that could make the drug harmful to health. This is relevant to Ayurvedic products because compliance is not limited to the herbal formulation itself; packaging and containers can also create a regulatory problem.

The Exact Legal Text:

21 U.S.C. §351(a)(3) provides that a drug is adulterated if its container is composed, wholly or partly, of a poisonous or deleterious substance that may render the contents injurious to health.

Keywords/Triggers:

Ayurvedic packaging, drug container safety, poisonous container, deleterious substance, packaging compliance, adulterated drug, FDA packaging, 21 USC 351

9. FD&C Act Color Additives in Drugs

Title: Safety of Color Additives Used in Drugs

Jurisdiction: United States

Category: Standards

Source Citation: Federal Food, Drug, and Cosmetic Act, §501(a)(4); 21 U.S.C. §351(a)(4), read with §721 / 21 U.S.C. §379e

Plain English Summary:

A drug can be adulterated if it contains a color additive that is unsafe for its intended coloring use. Therefore, if an Ayurvedic drug uses a color additive, the additive must satisfy the

applicable FD&C Act requirements rather than simply being treated as an ordinary formulation ingredient.

The Exact Legal Text:

21 U.S.C. §351(a)(4) provides, in relevant part, that a drug is adulterated if it bears or contains, for coloring purposes, a color additive that is unsafe under **21 U.S.C. §379e(a)**.

Keywords/Triggers:

Ayurvedic color additives, drug coloring, unsafe color additive, FDA color requirements, herbal medicine coloring, drug formulation, 21 USC 379e, 21 USC 351

10. FD&C Act Prescription Drug Status

Title: Prescription Drug Requirements

Jurisdiction: United States

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act, §503(b); 21 U.S.C. §353(b)

Plain English Summary:

Certain drugs may be legally dispensed only pursuant to a prescription or under the supervision of a licensed practitioner. If an Ayurvedic product is classified as a prescription drug under the applicable criteria, it cannot simply be sold to U.S. consumers as an unrestricted over-the-counter product.

The Exact Legal Text:

21 U.S.C. §353(b) establishes the statutory framework for drugs subject to prescription-only requirements, including drugs that require practitioner supervision or are not safe for use except under such supervision.

Keywords/Triggers:

Ayurvedic prescription drug, prescription-only drug, Rx requirement, OTC versus prescription, FDA prescription status, Ayurvedic medicine USA, 21 USC 353, prescription labeling

11. FD&C Act Drug Listing / Establishment Requirements

Title: Drug Establishment Registration and Drug Listing

Jurisdiction: United States

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act, §510; 21 U.S.C. §360

Plain English Summary:

The FD&C Act establishes registration and listing requirements for establishments involved in manufacturing, preparing, propagating, compounding, or processing drugs. An Ayurvedic business manufacturing or processing a product that qualifies as a drug therefore needs to consider FDA establishment registration and applicable drug listing obligations.

The Exact Legal Text:

21 U.S.C. §360 contains the statutory requirements concerning registration of establishments and listing of drugs, including information that must be submitted to FDA.

Keywords/Triggers:

FDA drug establishment registration, Ayurvedic manufacturer registration, drug listing, FDA registration USA, Ayurvedic drug manufacturer, establishment registration, NDC listing, 21 USC 360